

**IN THE COURT OF COMMON PLEAS
OF PIKE COUNTY, PENNSYLVANIA**

KELLI D. DESANTIS,	:	
	:	
PLAINTIFF,	:	
	:	
V.	:	DOCKET # 365-2025
	:	DIVORCE
	:	
,	:	
	:	
DEFENDANT.	:	

NOTICE TO DEFEND COUNTERCLAIM

You have been sued in Court. If you wish to defend against the claims set forth in the following pages, you must take prompt action. You are warned that if you fail to do so, the case may proceed without you and a decree of divorce or annulment may be entered against you by the Court. A judgment may also be entered against you for any other claim or relief in these papers by the plaintiff. You may lose money or property or other rights important to you, including custody or visitation of your children.

When the ground for divorce is indignities or irretrievable breakdown of the marriage, you may request marriage counseling. A list of marriage counselors is available in the office of:

Pike County Commissioners
Pike County Administration Building
506 Broad Street
Milford, PA 18337
(570)296-7744

If you do not file a claim for alimony, division of property, attorney's fees or expenses before a divorce or annulment is granted, you may lose the right to claim any of them.

You should take this paper to your lawyer at once. If you do not have a lawyer, go to or telephone the office set forth below. This office can provide you with information about hiring a lawyer.

If you cannot afford to hire a lawyer, this office may be able to help to provide you with information on programs that may offer legal services to eligible persons at a reduced fee or no fee.

Americans with Disabilities Act of 1990

The Court of Common Pleas of Pike County is required by law to comply with the Americans with Disabilities Act of 1990. For information about accessible facilities and reasonable accommodations available to disabled individuals having business before the Court, please contact our office. All arrangements must be made at least 72 hours prior to any hearing or business before the Court. You must attend the scheduled conference or hearing.

Respectfully Submitted,

Tammy Lee Clause, Esquire
P.O. Box 241
Newfoundland, PA 18445
(570) 676-5212
Attorney ID No. 59858
Attorney for
Defendant/Counter-Claim
Plaintiff, [REDACTED].

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**DEFENDANT/COUNTERCLAIM PLAINTIFF'S
ANSWERS TO DIVORCE COMPLAINT**

AND NOW, comes the Defendant/Counter-Claim Plaintiff, ██████████, by and through his Attorney, Tammy Lee Clause, Esquire, and herein files the following Answers to the Complaint for Divorce and in support thereof avers as follows:

Items 1-20 are denied; pursuant to Pennsylvania Rule of Civil Procedure 1920.14(a), the Defendant/Counter-Claim Plaintiff, ██████████, denies all of Plaintiff/Counter-

Claim Defendant, Kelli D. DeSantis's, averments 1 through 20.

WHEREFORE, the Defendant/Counter-Claim Plaintiff, [REDACTED], prays this Honorable Court will deny the Plaintiff/Counter-Claim Defendant, [REDACTED]s, request and grant a Divorce Decree pursuant to the Defendant/Counter-Claim Plaintiff, [REDACTED]s Counter-Claims.

COUNTER-CLAIMS

AND NOW, comes the Defendant/Counter-Claim Plaintiff, [REDACTED], by and through his counsel, Attorney, Tammy Lee Clause, and herein files the following Counter-Claim against the Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, and avers as follows:

GENERAL AVERMENTS

1. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], incorporates by reference his answers to the

Complaint averment 1-20 as though the same were set forth herein at length.

2. The Defendant/Counter-Claim Plaintiff, [REDACTED], is an adult individual with the address of [REDACTED] Road, Dingmans Ferry, Pike County, Pennsylvania 18328.

3. The Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, is an adult individual with an address of 474 Warren Street Apt 1, Brooklyn, Kings County, New York, 11217.

4. The Defendant/Counter-Claim Plaintiff, [REDACTED], and the Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, have resided in the Commonwealth of Pennsylvania for at least the last six months.

5. The parties were lawfully joined in marriage on September 22, 2007, in New York City, New York.

6. The parties are the parents of three (3) minor children K.F.D., age 15, L.W.D., age 13, and T.A.D., age 13.

7. The marriage is irretrievably broken.

8. The Defendant/Counter-Claim Plaintiff, [REDACTED], [REDACTED], avers the present action is not filed by reason of any collusion, directly or indirectly by the parties.

9. That neither the Defendant/Counter-Claim Plaintiff, [REDACTED], nor the Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, are in active military or naval service is in the United States or its allies within the provisions of the Soldiers and Sailors Civil Relief Act of Congress of 1940 and its amendments.

10. There have been no prior actions for divorce or annulment instituted by either of the parties in this or any other jurisdiction except this action docketed herein.

11. The Defendant/Counter-Claim Plaintiff, [REDACTED], [REDACTED], has been advised of the availability of counseling and does not desire to request counseling.

COUNT I-
REQUEST FOR A NO-FAULT DIVORCE UNDER
23 Pa.C.S.A. § 3301(d)

12. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], incorporates by reference paragraphs 1 through 11
as though the same were set forth herein at length.

13. At the appropriate time, Defendant/Counter-Claim
Plaintiff, [REDACTED], may submit an Affidavit alleging
that the parties have lived separate and apart for at least one
(1) year and the marriage is irretrievably broken.

WHEREFORE, the Defendant/Counter-Claim Plaintiff,
[REDACTED], respectfully request the Court to enter a
Decree of Divorce pursuant to Section 3301(d) of the Divorce
Code, at the appropriate time.

COUNT II-
REQUEST FOR FAULT DIVORCE UNDER 23 Pa. C.S.A. §
3301(a)(6) INDIGNITIES

14. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], hereby incorporates paragraphs 1 through 13 as
though the same were set forth herein at length.

15. Pursuant to 23 Pa. C.S.A. § 3301(a)(6) of the Divorce Code, the Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, has offered such indignities to the Defendant/Counter-Claim Plaintiff, [REDACTED], the innocent and injured spouse, as to render his condition intolerable and life burdensome.

WHEREFORE, Defendant/Counter-Claim Plaintiff, [REDACTED], respectfully requests the Court to enter a Decree of Divorce, divorcing Counter-Claim Plaintiff and Counter-Claim Defendant on fault grounds.

COUNT III-
REQUEST FOR FAULT DIVORCE UNDER
23 Pa.C.S.A. § 3301(a)(2)
ADULTERY

16. Defendant/Counter-Claim Plaintiff, [REDACTED], hereby incorporates paragraphs 1 through 15 as though the same were set forth herein at length.

17. Pursuant to 23 Pa. C.S.A. § 3301(a)(2) of the Divorce Code, Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, has committed adultery and any breakup of the

marriage is because of Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis's actions.

WHEREFORE, Defendant/Counter-Claim Plaintiff, [REDACTED], respectfully requests the Court to enter a Decree of Divorce, divorcing Defendant/Counter-Claim Plaintiff, [REDACTED] and Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, on fault grounds.

COUNT III-
REQUEST FOR EQUITABLE DISTRIBUTION UNDER
23 Pa. C.S.A. § 3502 OF THE DIVORCE CODE

18. The Defendant/Counter-Claim Plaintiff, [REDACTED], hereby incorporates paragraphs 1 through 17 as though the same were set forth herein at length.

19. Defendant/Counter-Claim Plaintiff, [REDACTED] and Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis, have acquired property, both real and personal, during their marriage.

20. Defendant/Counter-Claim Plaintiff, [REDACTED], and Plaintiff/Counter-Claim Defendant, Kelli D.

DeSantis have been unable to agree as to an equitable distribution of said property.

21. Defendant/Counter-Claim Plaintiff, [REDACTED]

[REDACTED], requests equitable distribution in his favor.

22. The Defendant/Counter-Claim Plaintiff, [REDACTED]

[REDACTED], requests equitable distribution for the increased values of all premarital and jointly held property.

WHEREFORE, Defendant/Counter-Claim Plaintiff,

[REDACTED], respectfully requests this Honorable Court to enter an Order distributing all of the aforementioned property, real and personal, plus any other relief this Court may deem equitable and just.

COUNT IV-
REQUEST FOR ALIMONY, ALIMONY PENDENTE LITE
UNDER 23 Pa.C.S.A. § 3701 and § 3702

23. The Defendant/Counter-Claim Plaintiff, [REDACTED]

[REDACTED], incorporates by reference paragraphs 1 through 22 as though the same were set forth herein at length.

24. The Defendant/Counter-Claim Plaintiff [REDACTED]
[REDACTED], lacks sufficient property to provide for his
reasonable means and is unable to support himself through
appropriate employment as he has been accustomed.

25. The Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], requires reasonable support to adequately
maintain himself in accordance with the standard of living
established during the marriage.

26. The Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], requests Alimony Pendente Lite and Alimony.

WHEREFORE, Defendant/Counter-Claim Plaintiff,
[REDACTED], requests the Court to enter an award of
Alimony Pendente Lite until final hearing and thereupon to
enter an award of Alimony in his favor.

COUNT V-
REQUEST FOR COUNSEL FEES, COSTS AND EXPENSES
UNDER 23 Pa. C.S.A. § 3104(a)(1), 3323(b), 3702 and
4351(a)

27. The Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], hereby incorporates paragraphs 1 through 26 as
though the same were set forth herein at length.

28. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], has employed Tammy Lee Clause, Esquire to
represent his in this matrimonial case.

29. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], is unable to pay his counsel fees, costs and
expenses and Plaintiff/Counter-Claim Defendant, Kelli D.
DeSantis, is more than able to pay all counsel fees and
expenses.

30. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], reserves the right to apply to the Court for
temporary counsel fees, costs and expenses prior to final
hearing.

31. Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED], also requests that, after final hearing, the Court
Order Plaintiff/Counter-Claim Defendant, Kelli D. DeSantis,
to pay all of Defendant/Counter-Claim Plaintiff, [REDACTED]
[REDACTED]s, counsel fees, costs and expenses.

WHEREFORE, Defendant/Counter-Claim Plaintiff,
[REDACTED], respectfully requests this Honorable Court
enter an award granting his counsel fees, costs and expenses
until final hearing and thereupon granting his such
additional counsel fees, costs and expenses as are deemed
appropriate and just.

COUNT VI-
REQUEST FOR CUSTODY

32. Defendant/Counter-Claim Plaintiff [REDACTED]
[REDACTED], hereby incorporates paragraphs 1 through 31 as
though the same were set forth herein at length.

33. Defendant/Counter-Claim Plaintiff/Father, [REDACTED]
[REDACTED], seeks shared legal custody and primary physical
custody of the following children:

- a. K.F.D, date of birth 1-age 15,
- b. L.W.D., date of birth 2-age 13,
- c. T.A.D., date of birth 3-age 13;

34. The children were born of wedlock.

35. The children are presently in the custody of both parties.

36. Since birth, the children have resided with Defendant/Counter-Claim Plaintiff/Father, [REDACTED], and Plaintiff/Counter-Claim Defendant/Mother Kelli D. DeSantis.

37. Defendant/Counter-Claim Plaintiff/Father, [REDACTED], who currently resides at [REDACTED] Road, Dingmans Ferry, Pike County, Pennsylvania 18328. He is married to Plaintiff/Counter-Claim Defendant/Mother, Kelli D. DeSantis.

38. Plaintiff/Counter-Claim Defendant/Mother, Kelli D. DeSantis, who currently resides at 474 Warren Street Apt 1, Brooklyn, Kings County, New York, 11217. She is married

to Defendant/Counter-Claim Plaintiff/Father, [REDACTED]

[REDACTED].

39. The relationship of the Defendant/Counter-Claim Plaintiff/Father, [REDACTED], to the children is that of Father.

40. The relationship of the Plaintiff/Counter-Claim Defendant/Mother, Kelli D. DeSantis, to the children is that of Mother.

41. The Defendant/Counter-Claim Plaintiff/Father, [REDACTED], has not participated as a party or a witness, or in another capacity, in other litigation concerning the custody of the children in this or any other Court.

42. The Defendant/Counter-Claim Plaintiff/Father, [REDACTED], has no information of a custody proceeding concerning the children pending in a Court of this Commonwealth or any other State.

43. The Defendant/Counter-Claim Plaintiff/Father, [REDACTED], does not know of a person not a party to the

proceedings who has physical custody of the said minor children or claims to have custody or visitation rights with respect to the minor children.

44. The Defendant/Counter-Claim Plaintiff/Father, [REDACTED], has attached the Criminal Record/Abuse History Verification required pursuant to Pa.R.C.P. No. 1915.3-2. Attached hereto as **Exhibit “A”** is the Defendant/Counter-Claim Plaintiff/Father, [REDACTED]s, Criminal Record/Abuse History Verification. Attached hereto as **Exhibit “B”** is a blank Criminal Record/Abuse History Verification for Plaintiff/Counter-Claim Defendant/Mother, Kelli D. DeSantis.

45. Based upon the Custody Factors in 23 Pa.C.S.A. § 5328 said factors shall weigh heavily in favor of Defendant/Counter-Claim Plaintiff/Father [REDACTED], request for shared legal and primary physical custody.

46. A copy of these Answers and Counter-Claims were served on Attorney, Frank J. Santomauro on April ____, 2025. Attached and incorporated as **Exhibit “C”**, is a true and correct Certificate of Service.

WHEREFORE, the Defendant/Counter-Claim Plaintiff/Father, [REDACTED], respectfully requests this Honorable Court enter an Order awarding him primary physical custody, shared legal custody and partial custody to Plaintiff/Counter-Claim Defendant/Mother.

Submitted by:

Tammy Lee Clause, Esquire
P.O. Box 241
Newfoundland, PA 18445
(570) 676-5212
Attorney ID No. 59858
Attorney for
Defendant/Counter-Claim
Plaintiff, [REDACTED].

COMPLIANCE CERTIFICATION

I, Tammy Lee Clause, Esquire, certify that this filing complies with the provisions of the *Public Access Policy of the Unified Judicial System of Pennsylvania: Case Records of the Appellate and Trial Courts* that require filing confidential information and documents differently than non-confidential information and documents.

Tammy Lee Clause, Esquire

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CERTIFICATE OF SERVICE

I, Tammy Lee Clause, Esquire, hereby certify that I have
on April ____, 2025, served the following individual with the
Defendant/Counterclaim Plaintiff's Answers to Divorce
Complaint, in the above-captioned matter:

Frank J. Santomauro, Esquire
142 South Main Avenue
Scranton, PA 18504
VIA REGULAR MAIL & EMAIL:
Frank@fjsantolaw.com

Respectfully Submitted,

Tammy Lee Clause, Esquire
P.O. Box 241
Newfoundland, PA 18445
(570) 676-5212
Attorney ID No. 59858
Attorney for
Defendant/Counter-Claim
Plaintiff, [REDACTED].